

obtain *an injunction against the sale, though the [*76] settlement was founded on meritorious consideration, as a provision for a wife or child (*a*), nor follow the estate into the hands of the purchaser (*b*), nor charge him with misapplication of the purchase-money, if, with notice of the voluntary settlement, he paid it to the vendor (*c*), nor can come upon the settlor himself to compensate the *cestui que trust* for the loss (*d*). However, the settlement must be purely voluntary, and not founded on valuable consideration at all (for the Court does not look at the *quantum* of consideration) (*e*); and where the settlement is purely voluntary the trust will be executed by the Court until the estate is actually sold (*f*); and the author of the settlement,

leaseholds by assignment was not voluntary, although the deed contained no covenant by the trustees to pay the rent or perform the covenants of the lease under which the premises were held, on the ground that the trustees came under a responsibility for payment of rent and performance of the covenants, which might be such a responsibility, that a lessee might be actually willing to pay money to get rid of. This case arose under 27 Eliz. cap. 5; but the doctrine laid down in it has no application to cases arising under 13 Eliz. cap. 5; *Re Rider*, 22 Ch. D. 74; and see *Ex parte Hillman*, 10 Ch. D. 622; *Re Marsh and Earl Granville*, 24 Ch. D. 11. The Irish case of *Gardiner v. Gardiner*, 12 Ir. C. L. R. 565, in which it was held that even a covenant by the assignee of a leasehold interest to indemnify the lessee against the rent and covenants in the lease was not necessarily such a valuable consideration as to take the case out of the Statute of Fraudulent Conveyances, 10 Car. 1, S. 2, c. 3, was not noted in *Price v. Jenkins*, and the question whether the principle of *Gardiner v. Gardiner* or *Price v. Jenkins* was to prevail, was treated as an open one in Ireland in *Hamilton v. Molloy*, 5 L. R. Ir. 339; and in a subsequent case in the Irish Court of Appeal,

Price v. Jenkins has been dissented from, and *Gardiner v. Gardiner* followed; see *Lee v. Mathews*, 6 L. R. Ir. 530, overruling S. C. 6 L. R. Ir. 167; and see *Re Lulham*, 53 L. J. N. S. Ch. 928; 32 W. R. 1013, in which case *Kay, J.* followed *Price v. Jenkins* against his own opinion.]

(*a*) *Pulvertoft v. Pulvertoft*, 18 Ves. 84.

(*b*) *Williamson v. Codrington*, 1 Ves. 516, *per* Lord Hardwicke.

(*c*) *Evelyn v. Templar*, 2 B. C. C. 148; and see *Pulvertoft v. Pulvertoft*, 18 Ves. 91, 93; *Buckle v. Mitchell*, 18 Ves. 112; but compare *Leach v. Dean*, 1 Ch. Rep. 146, with *Pulvertoft v. Pulvertoft*, 18 Ves. 91; and see 18 Ves. 92, note (*b*), and *Townend v. Toker*, 1 L. R. Ch. App. 447.

(*d*) *Williamson v. Codrington*, 1 Ves. 516, *per* Lord Hardwicke; but see *Leach v. Dean*, 1 Ch. Rep. 146; S. C. cited *Pulvertoft v. Pulvertoft*, 18 Ves. 91.

(*e*) *Townend v. Toker*, 1 L. R. Ch. App. 447; *Bagspole v. Collins*, 6 L. R. Ch. App. 228; [*Shurmur v. Sedgwick*, 24 Ch. Div. 507; see *Paget v. Paget*, 9 L. R. Ir. 128; *Reversed*, 11 L. R. Ir. 26.]

(*f*) *Pulvertoft v. Pulvertoft*, 18 Ves. 94.